

25STCV36167 25STCV36167

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Case Number: 25STCV36167 Hearing Date: June 30, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June

30, 2026 TRIAL

DATE: Not set

CASE: Keith Saunders v. William Blackwell, as Conservator of the Estate of

Ted H. Blackwell, et al.

CASE NO.: 25STCV36167

DEMURRER

WITHOUT MOTION TO STRIKE

MOVING PARTY: Defendant

William Blackwell, as Conservator of the Estate of Ted H. Blackwell aka

Theodore Blackwell and Theodore H. Blackwell

RESPONDING PARTY: Plaintiff Keith

Saunders

Plaintiff

Keith Saunders ("Saunders" or "Plaintiff") was employed as a 24-hour, in-home caregiver by Ted H. Blackwell ("T. Blackwell").

T. Blackwell has been under a conservatorship at all relevant times. In 2023, Saunder's employment was terminated. In 2025, Saunders filed a

Creditor's Claim against T. Blackwell's Conservatorship Estate for wages owed from the period of February 2021 to September 2023.. William Blackwell ("W. Blackwell"), T. Blackwell's brother and conservator over T. Blackwell and his estate, rejected the claim. Saunders now brings this action pursuant to Probate Code section 9353 to enforce his claim for unpaid wages against T. Blackwell.

I. BACKGROUND

On December

11, 2025, Plaintiff filed a Complaint against defendant William Blackwell, as Conservator of the Estate of Ted H. Blackwell aka Theodore Blackwell and Theodore H. Blackwell ("Defendant"), alleging causes of action for (1) Wage Theft in Violation of the Domestic Worker Bill of Rights (Lab. Code §§ 1194, 1450 et seq.); (2) Failure to Pay Minimum Wages (Labor Code §§ 1194, 1197); (3) Violation of Labor Code §1194.2; (4) Violation of Labor Code §§ 201, 203; and (5) Violation of Business & Professions Code § 17200.

On April

23, 2026, Defendant filed a demurrer to the Complaint.

On June 16,

2026, Plaintiff filed an opposition.

On June 23,

2026, Defendant filed a reply.

II. JUDICIAL NOTICE

Defendant's request for judicial notice is GRANTED.

III. LEGAL STANDARD

A demurrer

for sufficiency tests whether the complaint states a cause of action.¿ (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)¿ When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true.¿ (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.)¿ "Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are

subject to judicial notice.”² (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)³

IV. DISCUSSION

Defendant argues

the Complaint fails for two reasons: (1) the Complaint fails to state

any cause of

action against Ted individually because, as a person suffering from dementia who has been under a conservatorship since 2007, Ted was not and could not have been Saunders’ “employer”; (2) as to William in his capacity as Conservator, Plaintiff’s claims involve a dispute over personal property of the conservatorship estate and must be adjudicated in probate court pursuant to Probate Code sections 850 and 855.

Defendant’s first argument lacks

merit. The Domestic Worker Bill of

Rights states, in pertinent part:

A person,

including corporate officers or executives, who directly or indirectly, or through an agent or any other person, including through the services of a third-party employer, temporary service, or staffing agency or similar entity, employs or exercises control over the wages, hours, or working conditions of a domestic work employee.

(Lab. Code, §

1451(c)(1); see also Guerrero v. Superior Court (2013) 213 Cal.App.4th

912, 946 fn. 26 [in a household occupation case, observing that Wage order No. 15-2001 defined employer as any person who directly or indirectly, or through an agent or any other person, employs or exercises control over the wages, hours, or working conditions of any person].)

Under this broad language, an individual, regardless of mental capacity, could qualify as an employer, including a conservatee with dementia acting indirectly through his conservator.

Defendant does not provide any authority supporting a contrary conclusion.

Defendant’s second argument fares no

better. Probate Code section 9353

states:

(a) Regardless of

whether the statute of limitations otherwise applicable to a claim will expire before or after the following times, a claim rejected in whole or in part is barred as to the part rejected unless, within the following times, the creditor commences an action on the claim or the matter is referred to a referee or to arbitration:

(1) If the claim

is due at the time the notice of rejection is given, 90 days after the notice is given.

(2) If the claim

is not due at the time the notice of rejection is given, 90 days after the claim becomes due.

(b) The time

during which there is a vacancy in the office of the personal representative shall be excluded from the period determined under subdivision (a).

In other words, Plaintiff

was required to bring this civil action to avoid the expiration of his claims. Case law supports this procedure. (See, e.g., McDonald v. Structured Asset

Sales, LLC (2007) 154 Cal.App.4th 1068, 1074 [in a case concerning a rejected creditor's claim as to a decedent's estate, noting "appropriate course of action when a creditor's claim is rejected is for the creditor to commence a separate action on the rejected claim challenging rejection of the creditor's claim"].)[1] The demurrers fail.

IV. CONCLUSION

The demurrers are OVERRULED.

Defendant is ordered to serve and file its Answer to the Complaint within 5 court days of this order.

Moving party to give notice, unless waived.

Dated: June 30, 2026

Brock T. Hammond

Judge of the Superior Court

[1] Probate Code section 9353 applies

to creditor's claims against a decedent's estate. There are no allegations nor judicially

noticed facts establishing that T. Blackwell is deceased. Neither party discusses whether Section 9353

is properly invoked in this action. In

any event, the court notes the underlying principle of Section 9353 also

applies to rejected creditor's claims against a decedent's estate. (See, e.g., *Stevenson v. Superior Court* (1970)

9 Cal.App.3d 904, 906, 907 [law holding "that a creditor is authorized to

petition the probate court for an order directing the conservator to pay a

rejected claim based upon a debt, expense or charge, only if the claim has been

Lawfully established to be due and payable" because "rejected claims in a

conservatorship must be established by an action at law"].)